Both these texts, however, were generated by humans, and therefore humans could comprehend their origins and imperfections and at least attempt to correct their mistakes. It is possible for humans to understand the political interests and cultural biases that prevailed in the ancient Middle East and in eighteenth-century America and that caused the human authors of the Bible and of the US Constitution to legitimate racism and slavery. This understanding allows people to either amend or ignore these texts. In 1868 the Fourteenth Amendment to the US Constitution granted equal legal protection to all citizens. In 1954, in its landmark *Brown v. Board of Education* verdict, the US Supreme Court ruled that segregating schools by race was an unconstitutional violation of the Fourteenth Amendment. As for the Bible, while no mechanism existed to amend the Tenth Commandment or Genesis 9:25, humans have reinterpreted the text in different ways through the ages, and ultimately came to reject its authority altogether. In *Brown v. Board of Education*, US Supreme Court justices felt no need to take the biblical text into account.[25]

But what might happen in the future, if some social credit algorithm denies the request of a low-credit child to enrol in a high-credit school? As we saw in chapter 8, computers are likely to suffer from their own biases and to invent inter-computer mythologies and bogus categories. How would humans be able to identify and correct such mistakes? And how would flesh-and-blood Supreme Court justices be able to decide on the constitutionality of algorithmic decisions? Would they be able to understand how the algorithms reach their conclusions?

These are no longer purely theoretical questions. In February 2013, a drive-by shooting occurred in the town of La Crosse, Wisconsin. Police officers later spotted the car involved in the shooting and arrested the driver, Eric Loomis. Loomis denied participating in the shooting, but pleaded guilty to two less severe charges: ‘attempting to flee a traffic officer’ and ‘operating a motor vehicle without the owner’s consent’.[26] When the judge came to determine the sentence, he consulted with an algorithm called COMPAS, which Wisconsin and several other US states were using in 2013 to evaluate the risk of reoffending. The algorithm evaluated Loomis as a high-risk individual, likely to commit more crimes in the future. This algorithmic assessment influenced the judge to sentence Loomis to six years in prison – a harsh punishment for the relatively minor offences he admitted to.[27]